

25STCV12565 25STCV12565

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Case Number: 25STCV12565 Hearing Date: July 28, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

JACK GLIKSBERG, as trustee of the Jack
Gliksberg Trust,

Plaintiff,

vs.

MEMO'S SCAFFOLDING NORWALK, INC., et
al.,

Defendants.

Case No.:

25STCV12565

Hearing Date:

July 28, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

CROSS-COMPLAINANT

ALPA CONSTRUCTION, INC.'S MOTION FOR SUMMARY ADJUDICATION RE: SOUTHWEST
STUCCO, INC.'S DUTY TO DEFEND

AND RELATED CROSS-ACTIONS

Background

Plaintiff Jack Gliksberg, as Trustee of the
Jack Gliksberg Trust ("Plaintiff") filed this action on April
30, 2025 against Defendants Memo's Scaffolding Norwalk, Inc.
("Memo's"), Southwest Stucco, Inc. ("SSI"), Alpa Construction, Inc. ("Alpa"), 1442
Bedford LLC, and Elevado Group, Inc., alleging three causes of action for (1)
negligence, (2) strict liability, and (3) premises liability.

On June 20, 2025, Memo's filed a cross-complaint against SSI
alleging four causes of action.

On August 7, 2025, 1442 Bedford LLC filed a cross-complaint
against Zoes 1 to 50, alleging five causes of action.

On October 16, 2025, Alpa filed a cross-complaint against Memo's and SSI,
alleging five causes of action for (1) equitable indemnity; (2) contribution;
(3) declaratory relief; (4) express contractual indemnity; and (5) breach of
contract.

Alpa now moves for summary adjudication against SSI. SSI opposes. Alpa
replied.

Request for Judicial Notice

The Court grants Alpa's request for
judicial notice of Exhibits A, E, and F.

Legal Standard

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” ((Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” ((Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467); (Code Civ. Proc., § 437c, subd. (c).)

A motion for summary judgment or adjudication’s function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” ((Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” ((Code Civ. Proc., § 437c, subd. (c)); (see also Villa v. McFerren (1995) 35 Cal.App.4th 733, 741.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) As to each claim as framed by the complaint, the defendant moving for summary judgment or adjudication must satisfy the initial burden of proof by presenting affirmative evidence to disprove at least one essential element of the plaintiff’s cause of action,

show that an element cannot be established, or to establish an affirmative defense. ((Code Civ. Proc., § 437c, subd. (p)(2)); (Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465.)

Once the moving defendant meets its burden for a particular cause of action, the burden shifts to the nonmoving plaintiff. ((Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Ibid.)

On a motion for summary judgment or adjudication, the moving party's supporting documents are strictly construed, while the nonmoving party's documents are liberally construed. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 24.) Any "doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion." (Ibid.)

Discussion

Alpa moves for summary adjudication against SSI, invoking the duty to defend.

A.

Relevant Allegations of the Complaint

In the complaint, Plaintiff alleges, inter alia, that "[o]n or about November 2024 through February 2025, Defendants, and each of them, were engaged in construction activities for a five-story building at 1442-1446 S. Bedford St., in Los Angeles County (the 'Construction Site'), adjacent to Plaintiff's property at 1452 S. Bedford St." (Compl., ¶ 12.)

"As part of the construction activities, Defendants erected, maintained, directed, controlled, and/or operated scaffolding and scaffolding activities at the Construction Site." (Compl., ¶ 13.) "On or about February 13, 2025, the scaffolding collapsed, causing extensive damage to Plaintiff's apartment building at 1452 S. Bedford St. (the 'Apartment Building'), including but not limited to structural damage and related consequential harm. Such consequential harm includes, but is not limited to Defendants' scaffolding piercing the Apartment Building's roof in several locations, which caused rain to flood into the interior of the Apartment Building and cause extensive

water damage.” (Compl., ¶ 14.) Plaintiff alleges that “Defendants negligently constructed, inspected, operated, and/or maintained the scaffolding, rendering it unsafe and unstable, leading to the collapse.” (Compl., ¶ 15.)

B.

Duty to Defend

Alpa asserts that SSI has a duty to defend Alpa in the lawsuit Plaintiff initiated against Alpa.

“If any party moves for summary judgment or adjudication (Code of Civil Procedure section 437c) with respect to the duty to defend against litigation still in progress, the court may proceed as it deems expedient. For example, the court may resolve legal issues then ripe for adjudication, such as whether any of the contracts at issue include a duty to defend, and, if so, whether the underlying suit or proceeding as to which a defense is sought falls within the scope of any of the parties’ contractual duty to defend.” ((Crawford v. Weather Shield Mfg., Inc. (2008) 44 Cal.4th 541, 565, fn. 12 (Crawford).)

An indemnity obligation “entails the payment of money in order to resolve liability. [Citations.] It arises only after liability is established.” ((Buss v. Superior Court (1997) 16 Cal.4th 35, 46.) “By contrast, the [] duty to defend runs to claims that are merely potentially covered, in light of facts alleged or otherwise disclosed. [Citations.] It entails the rendering of a service, viz., the mounting and funding of a defense [citations].” (Ibid.) “A contractual promise to ‘defend’ another against specified claims clearly connotes an obligation of active responsibility, from the outset, for the promisee’s defense against such claims. The duty promised is to render, or fund, the service of providing a defense on the promisee’s behalf—a duty that necessarily arises as soon as such claims are made against the promisee, and may continue until they have been resolved. This is the common understanding of the word ‘defend’ as it is used in legal parlance.” (Crawford, supra, 44 Cal. 4th at pp. 553-554.)

Civil Code

section 2778, subdivision (4), provides that “[t]he person indemnifying is bound, on request of the person indemnified, to defend actions or proceedings

brought against the latter in respect to the matters embraced by the indemnity, but the person indemnified has the right to conduct such defenses, if he chooses to do so."

"[T]he question whether an indemnity agreement covers a given case turns primarily on contractual interpretation, and it is the intent of the parties as expressed in the agreement that should control. When the parties knowingly bargain for the protection at issue, the protection should be afforded. This requires an inquiry into the circumstances of the damage or injury and the language of the contract; of necessity, each case will turn on its own facts." ((*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 633.))

It is undisputed that Alpa entered into a Subcontract Agreement with SSI on January 15, 2025, for the stated sum of \$300,000.00, under which SSI was to perform construction work, including but not limited to stucco and scaffolding work on the Bedford Street Project. (Daley Decl., ¶ 3, Ex. B.) Although SSI was contracted to perform scaffolding work on the project, SSI entered into a subcontract with Memo's to install scaffolding for the project. (Secharia Decl., ¶ 3, Ex. 1.)

Alpa requested that SSI install tarps on the scaffolding, even though Dean Secharia, the construction manager for SSI, advised delaying tarps due to safety issues. (Secharia Decl., ¶ 4, Ex. 2.) Installing tarps on scaffolding increases the wind load on the scaffolding. (Bednar Decl., ¶ 5, Ex. 8, 74:5-7, 101:11-25.) Before installing the tarps, Dean Secharia advised Memo's that SSI intended to do so, and Memo's did not object to the installation. (Secharia Decl., ¶ 5, Ex. 3.)

On February 13, 2025, SSI learned that the top portion of the south-side scaffolding had collapsed onto the neighboring building, owned by Plaintiff. (Secharia Decl., ¶ 7.) Memo's believes that the wind was a substantial factor in causing the scaffolding to partially collapse. (Bednar Decl., ¶ 4, Ex. 8, 131:17-20.) Memo's also believes that the scaffolding collapse was caused by the tarps SSI installed on the south-side scaffolding. (Bednar Decl., ¶ 3, Ex. 5, 3:14-16, 4:5-8.) Per the agreement between SSI and Memo's, no one except for Memo's was authorized to alter the scaffolding. (Secharia, ¶ 8, Ex. 6.)

In connection with the subcontract, SSI

expressly agreed to defend and indemnify Alpa for any claims arising from SSI's work on the construction Project, pursuant to the General Indemnity provisions contained in Article 7.1 of the SSI Subcontract Agreement with Alpa, which provides, inter alia, that:

7. 1 GENERAL

INDEMNITY: To the fullest extent permitted by law, Subcontractor specifically obligates itself to protect, immediately defend, indemnify and hold Contractor, Owner and their respective officers, directors, employees, agents and representatives and any other person indemnified by Owner (hereinafter referred to as the "Indemnities") harmless against claims, damages, losses, costs, expenses, including any fees of accountants, attorneys, experts or other professionals, or investigation expenses, and liabilities in law or in equity arising out of the Subcontractor's operations and the Subcontract Work. Subcontractor's obligations to protect, indemnify and hold Indemnities harmless, in addition to the separate and independent duty to defend, include, but are not limited to, the following:

7.1.1. All damages,

liability, penalties, losses, damages, expenses, costs (including attorneys' fees and costs), causes of action, demands, claims or judgments, for any alleged or actual violation or infringement by Subcontractor (or Subcontractor's employees or subcontractors or consultants or vendors of any tier) of any law, statute, codes, safety or occupational health orders, rules, regulations, standards, orders or any patent or patent right.

7.1.2. All damages,

liability, penalties, losses, damages, expenses, costs (including attorneys' fees and costs), causes of action, demands, claims or judgments, resulting from injury to or death of any person (including Subcontractor's employees) or damage to property of any kind (including economic loss), including the Subcontract Work under this Agreement or the work of others on the Project, which injury, death or damage arises out of or is in any way connected with the performance of Subcontract Work under this Agreement. ...

7.1.7. Subcontractor's

indemnity and hold harmless obligations hereunder shall apply to any acts, omissions, willful misconduct, negligent conduct, other fault, or liability without fault of any person or entity, including but not limited to Subcontractor's agents, employees, subcontractors, suppliers, and any other

individual or entity for whom Subcontractor may be responsible, whether active or passive, and whether or not sole or concurrent with that of any other person or entity; except that this indemnity obligation shall not require that Subcontractor indemnify any of the persons or entities named as Indemnities herein against claims arising from his, her, or its active negligence or willful misconduct.

7.1.8. Alternatively, as

provided by Civil Code 2782 and 2782.05,

Subcontractor may elect to pay, within 30 days of receipt of an invoice from Contractor its allocable share of Contractor's defense fees and costs on an ongoing basis during the pendency of a claim. If Subcontractor fails to timely and adequately perform its obligations under this Article of the Subcontract, Contractor shall have the right to pursue a claim against the Subcontractor for any resulting compensatory damages, interest on defense and indemnity costs, from the date incurred, consequential damages, and reasonable attorneys' fees incurred to recover these amounts

7.2 INSURANCE: Before

commencing the Work, and as a condition of payment, Subcontractor shall maintain in full force and effect throughout the entire term of this Agreement and applicable guarantee period, worker's compensation and commercial general liability. (Daley Decl., ¶ 3, Ex. B.)

On May 22, 2025, Alpa tendered its

defense of Plaintiff's complaint to SSI. (Daley Decl., ¶ 5, Ex. D.) However, to date, SSI has not defended Alpa. (Daley Decl., ¶ 6.) Additionally, under the parties' contract, SSI was required to maintain insurance during the project.

(Daley Decl., ¶¶ 3-4; Ex. B, §§ 7.2, 8.6.5 "Exhibit E - Insurance Requirements;" Ex. C, 71:10-22.)

Alpa contends that "Alpa and SSI

entered into a written Subcontract Agreement which contains express promises by SSI to defend Alpa Construction, Inc., as Contractor, against all liabilities, claims, demands, damages, expenses and causes of action arising out of or relating to SSI's work" (Mot., 10:25-28), and "[a]s set forth in Crawford, the issue of whether SSI is ultimately found negligent is irrelevant for the purpose of determining SSI's duty to defend; the defense obligation is triggered by the proper tender of a claim where (as here) there is a causal connection between SSI's scope of work and the violations alleged by

Plaintiffs.” (Mot., 15:3-7.)

SSI's opposition asserts that “the parties clearly did not intend that SSI indemnify Alpa for Alpa's own active negligence. Not only does the indemnity provision exempt SSI from indemnifying Alpa for its own active negligence, it also expressly refers to §2782.05, but expressly contemplates that SSI may elect to reimburse Alpa for SSI's allocable share of attorney fees and costs.” (Opp., 4:2-5.) SSI further contends that “SSI has presented evidence that creates a triable issue of material fact as to whether Alpa was actively negligent when it ordered SSI to prematurely install tarps, despite being apprised of wind conditions that created a safety issue. Memo's concluded that wind was ‘a big factor’ in causing the scaffolding to partially collapse and blames SSI for installing the tarps. Inferentially, SSI would not have installed the tarps absent Alpa's directive.” (Opp., 5:12-17.)

Under *Crawford*, a subcontractor has a duty to defend, even if they ultimately are found not liable. (See *Crawford*, supra, 44 Cal.4th at p. 565.) The *Crawford* Court explicitly stated that “case law has long confirmed that, unless the parties' agreement expressly provides otherwise, a contractual indemnitor has the obligation, upon proper tender by the indemnitee, to accept and assume the indemnitee's active defense against claims encompassed by the indemnity provision.” (Id. at p. 555.) Here, the explicit language of the subcontract agreement between Alpa and SSI provides a negligence carveout, which states, inter alia, that “except that this indemnity obligation shall not require that Subcontractor indemnify any of the persons or entities named as Indemnities herein against claims arising from his, her, or its active negligence or willful misconduct.” (Daley Decl., ¶ 3, Ex. B, § 7.1.7.) However, the negligence exception is only found within the indemnify provision, not the defense provision. The *Crawford* Court made clear that a defense provision is not coextensive with an indemnification provision. (*Crawford*, supra, at p. 564 [“the duty to defend upon the indemnitee's request, as set forth in subdivision 4 of section 2778, is distinct from, and broader than, the duty expressed in subdivision 3 of the statute to reimburse an indemnitee's defense costs as part of any indemnity otherwise owed.”].)

The duty to defend provision of the parties' contract, section 7.1.8, does not provide a

negligence carveout. However, as noted by SSI, it explicitly references Civil Code section 2782.05. Under that statute, it provides that “[e]xcept as provided in subdivision (b), provisions, clauses, covenants, and agreements contained in, collateral to, or affecting any construction contract ... that purport to insure or indemnify, including the cost to defend, a general contractor, construction manager, or other subcontractor, by a subcontractor against liability for claims of death or bodily injury to persons, injury to property, or any other loss, damage, or expense are void and unenforceable to the extent the claims arise out of, pertain to, or relate to the active negligence or willful misconduct of that general contractor.” (Civ. Code, § 2782.05, subd. (a).) However, pertinently, this statute provides express carveouts, stating that “[t]his section does not apply to ... [a] provision in a construction contract that requires the promisor to purchase or maintain insurance covering the acts or omissions of the promisor, including additional insurance endorsements covering the acts or omissions of the promisor during ongoing and completed operations.” (Civ. Code, § 2782.05, subd. (b)(6).) As noted above, the parties’ contract had an express insurance requirement. Thus, the negligence exception under Civil Code section 2782.05, subdivision (a), is inapplicable here.

Although SSI presents evidence of Alpa’s alleged negligence, this does not raise a triable issue of material fact; without a negligence exception to the duty to defend contained in the parties’ agreement or under Civil Code section 2782.05, subdivision (a), SSI is required to defend Alpa upon Alpa’s tender. (See Civ. Code, § 2782.05, subd. (e) “[a] subcontractor shall owe no defense or indemnity obligation to a general contractor or construction manager for a claim unless and until the general contractor or construction manager provides a written tender of the claim, or portion thereof, to the subcontractor that includes the information provided by the claimant or claimants relating to claims caused by that subcontractor’s scope of work.”.) Thus, on May 22, 2025, when Alpa tendered its defense of Plaintiff’s complaint to SSI (Daley Decl., ¶ 5, Ex. D), SSI was required to defend Alpa but failed to do so. Accordingly, SSI did not demonstrate that a triable issue of material fact exists.

Conclusion

Based on the foregoing, Alpa’s motion for summary adjudication is GRANTED.

Alpa is to give
notice of this Order.

DATED: July
28, 2026 _____

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court